

Our reference: Ombudsman's reference:

PID 2023/Krypton Not applicable

**OFFICIAL: SENSITIVE**



Delivered by the  
National Disability  
Insurance Agency

Dr Richard McLean

By email: [richarddrawsstuff@gmail.com](mailto:richarddrawsstuff@gmail.com) **Private and Confidential**

Dear Dr McLean

### **Potential public interest disclosure**

I am an authorised officer for the purposes of the *Public Interest Disclosure Act 2013 (PID Act)*. I am writing to you about your emails dated 18 and 20 April 2023 that were sent to [PID@ndis.gov.au](mailto:PID@ndis.gov.au).

The purpose of this letter is to:

- give you information about public interest disclosures and the PID Act
- ask you for information about the concerns raised in your emails
- ask you for your consent to disclose your name and contact details.

#### **Public interest disclosures**

Public officials who suspect wrongdoing in the Commonwealth public sector can raise their concerns under the PID Act. An allegation made under the PID Act is a public interest disclosure.

This is also sometimes called 'whistleblowing'.

All Australian Government agencies, including the National Disability Insurance Agency (**NDIA**), have responsibilities under the PID Act to investigate public interest disclosures that are allocated to them. The PID Act says that a disclosure must be allocated to an agency if:

- the discloser is a public official

- the disclosure was made to an authorised internal recipient
- the information disclosed tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct.  
The PID Act also says that authorised officers can ask for more information to help them decide whether to allocate a disclosure to an agency.

GPO Box 700 CANBERRA ACT 2601 **1800 800 110** [ndis.gov.au](https://www.ndis.gov.au)

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## **OFFICIAL: SENSITIVE**

### **Your disclosure**

#### *Public official*

I understand from your emails that you think that you are a 'public official' for the purposes of the PID Act. The PID Act says that a 'public official' includes:

- Commonwealth public servants who work in Departments, executive agencies and prescribed authorities
- members of the Australian Defence Force
- appointees of the Australian Federal Police
- Parliamentary Services employees
- directors and staff members of a Commonwealth company
- statutory office holders

- any other person who exercises powers under a Commonwealth law
  - people who are contracted service providers for a Commonwealth contract
  - Scott treadwell from the Federal Court has stated:
  - 'A public interest disclosure can only be made by a "public official"; paragraph 26(1)(a) PID Act. The meaning of "public official" is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to include employees of organisations which provide goods or services under a Commonwealth contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act. On the information you have provided me, I am satisfied that you are, or were, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.'
  - **people who are officers or employees of contracted providers for a Commonwealth contract and who provide services for the purposes of that contract**
  - people who are subcontractors to a person who is a contracted service provider for a Commonwealth contract and who provide services for the purposes of that Commonwealth contract.  
From your emails, I am not sure whether you are a public official for the purposes of the PID Act. To help me to assess your emails under the PID Act, I am asking you to tell me more about how you are a public official for the purposes of the PID Act. You can do this by telling me which of the above types of public official you are.
- Disclosable conduct*
- I understand from your emails that you think that the information in your emails tends to show one or more instances of disclosable

conduct. The PID Act says that disclosable conduct is conduct within an Australian Government agency or by a public official that:

- contravenes a Commonwealth, state or territory law
- occurred in a foreign country and contravenes a foreign law that applies to the agency, official or service provider
- perverts the course of justice
- is corrupt
- constitutes maladministration, including conduct that is based on improper motives or is unreasonable, unjust, oppressive or negligent
- is an abuse of public trust
- involves fabrication, falsification, plagiarism or deception relating to scientific research, or other misconduct in relation to scientific research, analysis or advice
- results in wastage of public money or public property
- unreasonably endangers health and safety
- endangers the environment
- is prescribed by the *Public Interest Disclosure Rules 2019*. The PID Act also says that disclosable conduct includes conduct by a public official that:

- involves or is engaged in for the purposes of abusing their position as a public official
- could give reasonable grounds for disciplinary action against the public official.

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Because of the amount of information you have sent me, I am not sure which information in your emails you think tends to show disclosable conduct. At **Attachment A**, I have set out my understanding of your concerns. I am asking you to tell me if the information in **Attachment A** is correct. It would also help me if you could give me more specific information, including the names of any people who you have concerns about and the dates that you say the things in your emails happened.

### **Your consent**

If I decide to allocate your disclosure to an agency for investigation, I must give the principal officer of that agency and the Ombudsman certain information about your disclosure including the information that was in your email. If you give your consent, I must also give the principal officer and the Ombudsman your name and contact details.

I have included a consent form at **Attachment B** for you to read, complete and return. **Request for information**

To help me to assess your emails under the PID Act, I am asking you to:

- tell me how you are a public official for the purposes of the PID Act
- tell me if **Attachment A** is correct
- complete and return the form at **Attachment B** by **9 May 2023**.

If I do not hear from you by this date, I will assess your concerns based on the information I have. I will also assume that you do not want me to disclose of your name and contact details to the principal officer of the relevant agency and the Ombudsman.

### **Further assistance**

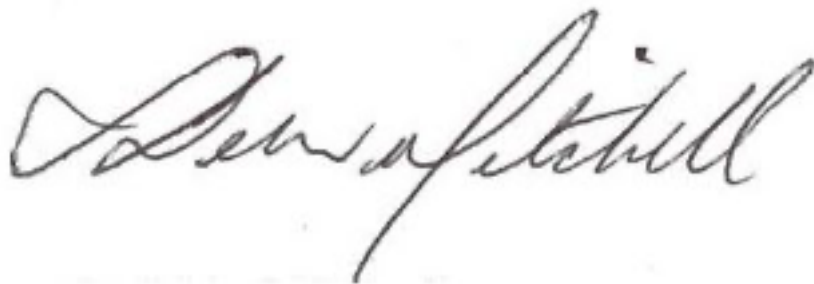
I am concerned about some of the things that you have said in your emails about your wellbeing. I encourage you to reach out to your support network and, if you feel you need further support to Lifeline Australia (13 11 14).

If you have any questions, please contact [PID@ndis.gov.au](mailto:PID@ndis.gov.au). Yours sincerely

Debbie Mitchell

Authorised Officer under the PID Act

2 May 2023



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## **Potential public interest disclosure**

### **Details of disclosure**

**Date of disclosure:** 18 and 20 April 2023 **Status of discloser:** Unknown  
**Authorised officer:** Debbie Mitchell

### **Allegations (EDITED)**

#### **Allegation 1**

##### **Attachment A**

On an unspecified date, an unnamed employee of the NDIA working in an NDIS contact centre obtained Dr McLean's address, attended Dr McLean's home and had sex with Dr McLean.

#### **Allegation 2**

On an unspecified date or dates, Tony Riddell, a former employee of the NDIA, threatened Dr McLean and doctored NDIS documents.

### **Allegation 3**

Dr McLean and Mr Steve Iasonidis have committed fraud against the NDIA.

#### **Evidence in support of allegation**

- Dr McLean provides services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.
- Mr Iasonidis was been employed by the Australia Security Intelligence Organisation.
- While Mr Iasonidis was earning a salary of more than \$30,000 a month, he also received a carer's pension for taking care of Dr McLean.
- Dr McLean fraudulently received money from the NDIS, for the services of Mr Iasonidis, under the line item of 'life coaching'.

### **Allegation 4**

Dr McLean and Mr Iasonidis have committed fraud against Centrelink.

#### **Evidence in support of allegation**

- While Mr Iasonidis was earning a salary of more than \$30,000 a month, he also received a carer's pension for taking care of Dr McLean.
- Dr McLean continued to receive a disability pension while he was in a relationship with Mr Iasonidis.

### **Allegation 5**

The NDIA knows of the fraud against the NDIA and Centrelink but have not laid charges.

### **Allegation 5**

**The federal court both admits to corruption and continues to harm rich mclean by not granting whistleblower status and an unreasonable amount of harm to his welfare and safety is occurring**

### **Allegation 6**

**A conspiracy to pervert the course of justice was and is happening and it has redacted all prosperity and rights from dr rich mclean**

### **Allegation 7**

**The governments stance is preferable to vilify rich mclean for 'illness' -thatIT creates - in favour of protecting Steve Iasonidis and other high level public officials including mark Dreyfus attorney general**

### **Allegation 8**

**It is not ethical for a tribunal to rule that rich mclean be injected for 'delusions' that are real and that the government created when dr rich mclean has no legal representation'**

### **Allegation 9**

**This conspiracy has resulted in rich mclean never having access to the law or equality before it**

### **Allegation 10**

Rich Mclean is victimised by government agencies and public officials and also the victims family violence from his former partner Steve Stefen Iasonidis

### **Allegation 11**

**Rich mclean has been banned from afca and this is not permissible for a free citizen of the country who should have access to services like other free citizens**

### **Allegation 12**

**The AHRC ruined rich chances of a settlement with TAL super and free kicked a supposedly impartial settlement to TAL in an entirely unimpartial way**

### **Allegation 13**

**The AAT are well aware of rich cleans destruction victimisation and destitution including homelessness but still act to delay deny and defer his work cover payments and determination**

### **Allegation 14**

**The federal court acknowledge that rich mclean was employee of DSS and this alone should pave the way for his workcover to be paid'**

### **Allegation 15**

**The attorney general mark Dreyfus victimises rich mclean by never acknowledging his calls or his many emails and this is called detriment and it is because rich mclean made a complaint and this is also discrimination**

### **Allegation 16**

**The office of prime minister and cabinet have silenced evidence in an foi which would clearly demonstrate the many injustices and the conspiracy to pervert the course of justice and the vile victimisation rich mclean has endured**

### **Allegation 17**

**The federal government has psychometrically profiled rich mclean as a person of interest and this has caused him detriment in psychological emotional money reputation ways. Additionally everything he owned was taken to the tip overseen by a corrupt police force and additionally werribee mercy hospital that cover up rich cleans suicide attempt for which they owed a duty of care and for which rich mclean now has a cognitive brain impairment**

### **Allegation 18**

**Rich cleans human rights have been squashed and destroyed**

### **Allegation 19**

**Health super should pay rich mclean AT LEAST another \$83000 as a unit of cover to bring it in line with their own PDS that two units of cover are standard in 2007 -a year before he was paid his TPD**

### **Allegation 20**

**Rich cleans fois have been systemically rejected from many places and agencies to protect public officials and cover up discposable conductor public officials and corruption**

### **Allegation 21**

**The police and Weribee mercy hospital acted unlawfully when hung ho of edithvale went to his home in footscray whilst he was incarcerated as a political prisoner and destroyed over \$60000 worth of art and objects and immeasurable loss of his person items including drawings and documents and artwork and sketchbooks/ photos**

### **Allegation 22**

**VCAT refuse to investigate this malicious destruction of dr rich cleans worldly goods and refuse to rule against hung ho or order that he receive compensation and this is in line with the conspiracy to pervert the course of justice**

### **Allegation 23**

**Police intimidated rich mclean with the mental health act and literally ran him out of town and he was forced to flee as a scapegoat and on the run from authorities although he had a clean criminal record and this ended up in him staying in hotels and in his car and on one day he was actually run over - mowed down in the street - it is unclear if this was a set up but rich cleans leg was maimed and his dog was hurt**

### **Allegation 24**

**Rich Mclean has suffered from exploitation vilification victimisation and family violence and coercive financial control for years and this is elongated by a government who protect Steve Iasonidis and refuse to investigate how rich mclean was exploited and that the government and its agencies never ever admit the relationship existed nor that mr Iasonidis had total malicious control over rich cleans financial life as is proven years later even though they were not together anymore**

### **Allegation 25**

**Rich Mclean was beaten up by and underworld government thug inside Weribee mercy hospital. This was evident because the attacker -mark - wore a t-shirt with the design of rich's tattoo on his t shirt and the attack was**

**unprovoked. Later - over six months later -mat Vonarx would aid rich mclean escaping police and took him to a hostel where mark was staying in the room next door and further intimidated and threatened rich mclean as he be broken and scared as a fugitive from policer the purposes of themntal health act**

### **Allegation 26**

**In line with financial destruction rich cleans PLR and ELR dried up about the same time he was framed**

### **Allegation 27**

**A 2004 work cover case has never been paid because rich mclean has never been able to access equality before the law nor access to it**

### **Allegation 28**

**Afca acted outside their own policy when they took year and a half to comet no determination when it should gave ben within six weeks for marginalised financial person**

### **Allegation 29**

**At the time the complaint against dr Whitaker he was not searchable on ahpras database on their website and additionally his abn had been cancelled**

### **Allegation 30**

**Rich Mclean has not received an ounce of support since his work place injury complicated by his framing and victimisation**

### **Allegation 31**

**Michaelia cash was made aware of the corruption and refused to intervene as is her remit**

### **Allegation 32**

**Rich cleans self advocacy has resulted in him being infamous. This is evident as he has emailed every parliamentarian and received no response**

### **Allegation 33**

**Drhorgan acts with impunity to damage rich clan by rejecting him his dexamphetamine script for which he praised was working so well for him. This is yet another malpractice case. Every day rtichgoes without this script that is proved to work is at risk of medicating with street drugs and it affects his ability to think clearly and have choice and control in his own treatment**

### **Allegation 34**

**Rich ,mclean abuse and victimisation is profound elongated and public as detailed in the herald sun and him then being fired at the age**

### **Allegation 35**

**Steve Iasonidis admitted he was present at a murder -more than one - and dealt large amounts of cocaine. Mr Iasonidis reaction to this whistleblowing disproof in itself.**

### **Allegation 36**

**Agis refuse to act ethically by refusing to investigate corrupt public official Steve Iasonidis and the way he at first exploited Dr Mclean and then financially controlled his life for years later which the government supported**

### **Allegation 37**

**If it is true that Mr Iasonidis was done for embezzlement then it is clear that the death threat is real and Dr Mclean is in hiding fearful for his life and the life of his beloved dog**

### **Allegation 38**

Dr Mclean was also he believes framed by Russell Ball - a lawyer who informs Government policy and advises the Ombudsman (where Mclean is now a failed whistleblower) over a 2017 malpractice case in which evidence was silenced by: HCC, MHCC, The Police, IBAC, The Victorian inspectorate, AHPRA, NHPOPC and The Commonwealth ombudsman. In addition then health minister Greg Hunt towed the party line in refusing to acknowledge the evidence - that was permissible evidence before a court. The case never happened.

This is corruption

### **Allegation 39**

### **Allegation 40**

**A geelong Vocat magistrate was corrupt in not paying compensation for rich sexual abuse**

#### **Allegation 41**

**finance.gov.au acted with malice to not pay a settlement for the CDDC scheme in which they are supposed to compensate for the defective administration of public statutory offices**

#### **Allegation 42**

**The victimisation of derrick mclean is abhorrent and was the causation of his suicide attempt. There is now a cover up with all concerned and at the hospital. In essence - this conspiracymurdered rich mclean but he was revived from death.It did not end though and the persecution goes on with audacity anda conscious and intentional malice to this day**

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## Allegation 6

The NDIA has framed Dr McLean.

## Allegation 7

Ms Ashling Kelly, NDIS Planner in the Complex Support Needs Team, has not allowed Dr McLean opportunity to acquire accommodation.

### Evidence in support of allegation

- Ms Kelly intervened to limit Dr McLean's choice and control choosing of a support coordinator.
- Due to the intervention of Ms Kelly, Dr McLean has been unable to acquire accommodation.

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## Consent form

### Attachment B

The *Public Interest Disclosure Act 2013* says that an authorised officer must inform the principal officer of the agency that a disclosure is allocated to and the Commonwealth Ombudsman your name and contact details if you give your consent. Giving your consent is voluntary.

You can choose to use your real name, choose to use a pseudonym (assumed name) or choose to remain anonymous. You can also choose to use your usual email address remain anonymous and use an anonymous email address.

## Your consent

**Your name:** Dr Richard McLean

**Your contact details:** [richarddrawsstuff@gmail.com](mailto:richarddrawsstuff@gmail.com)

Please tick the relevant box or boxes.

- ☐ I consent to the principal officer of the relevant agency and the Commonwealth Ombudsman being informed of

- ☐ my name only.
- ☐ my contact details only.
- ☐ my name and contact details.

**OR**

- ☐ ~~I do not consent to the principal officer of the relevant agency and the Commonwealth Ombudsman being informed of my name or contact details.~~

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**Dear Attorney general's office,**

**My NDIS client Dr rich mclean seems to be the unwitting centre of a conspiracy to pervert the course of justice.**

**It is my role to help Dr Mclean with issues in his life that cause stress that in effect exacerbate an already existing mental illness. The facts is that the stress Dr Mclean endures is systemic it is political it is conscious and it is malicious. The Federal court, in response to his PID acknowledged this:**

'I am satisfied, from the correspondence and other information provided, that you believe that the information you have disclosed tends to show one or more instances of conduct that:

- perverts, or is engaged in for the purpose of perverting, or attempting to pervert, the course of justice; section 29 Item 3(a) PID Act;
- conduct that constitutes maladministration; section 29 Item 4 PID Act; and
- conduct that unreasonably results in a danger to the health or safety of one or more persons; or unreasonably results in, or increases, a risk of danger to the health or safety of one or more persons; section 29 Item 8 PID Act.

It is difficult to determine whether this belief is based on reasonable grounds or not. However, for the purposes of the initial assessment I am prepared to assume that the conduct disclosed in your correspondence and other information received is disclosable conduct for the purposes of the PID Act. '

It has now been demonstrated that Dr McLean is being used as a political scapegoat and is in effect - being sacrificed in order to save the face of his former partner and other Government officials and public servants.

The fact the Government acknowledges that there is an unreasonable danger to his health and safety and then continue on the trajectory to redact his prosperity and deny his access to the law and equality before it and further vilify him by force medicating him for delusions - that are entirely real - is I believe an embarrassment to The Australian Government. Not only is it a black slur on the treatment of a person who has been brave and courageous in his life - but it is also illegal.

**He has shown me evidence confirming that:**

**He is banned from AFCA which has cost him millions,**

**He lost an over 1.5 million dollar case regarding superannuation and income protection at AHRC,**

**His work cover case at the AAT fails to be settled because Comcare say he is 'not an employee' - this is despite the Federal Court acknowledging they are satisfied that he was an employee of DSS, and if his case would fail at the**

**AAT and it is ruled in the Governments favour and he is redacted his work cover - his appeal would actually be at the Federal court.**

**The attorney general mark Dreyfus will not acknowledge his calls or emails, The office of prime Minister and cabinet refuse his FOI stating 'documents do not exist'**

**Dr Rich Mclean actually DOES exist - and has served this country by totally independently acting as an advocate and put his own life and experiences on the line of the public discourse as the only way he knew how to inform the broader public about the difficulties of his experience of mental illness. This resulted in him being awarded SANE Australia's 'Book of the Year' and a human rights award. Yet his human rights are nowhere to be found.**

**For your reference - here is a list of places institutions organisations and locations where he has personally spoken to oppose shame stigma discrimination and discrimination. As I am sure you will see Dr Mcleans ethical conceptual framework has been to speak from the heart with compassion and honesty and he has done so in a way which has been passionate and over years of elongated time:**

Dr Mclean advocated against shame stigma discrimination and prejudice relating to mental illness for most of his life. He has spoken from Parliament House in Canberra to The school of religious and philosophical studies in Montreal Canada. He has travelled the Australian continent speaking at local state and federal levels including Dubbo to Warnambool to Canberra Sydney and Melbourne. Here is a list of places he has spoken:

#### **INTERVIEWS and PRESENTATIONS:**

Radio National 'Life Matters' program. Julie McCrossin-ABC, Triple J-Youth Network, Rachel Kerr (National), Tricia Duffield on Radio 2SM, Sydney, Martin Powley for ABC Gold & Sunshine Coasts, QLD, Fiona Sewell for ABC Radio Adelaide, Statewide afternoons, James Valentine for ABC Radio 702, Phillip Brady & Bruce Mansfield on Radio 3AW 'Nightline', John Weeks from Spectrum FM Radio, Stateline on ABC TV, Good Morning Australia with Steve Leidman, for 'Compulsive Executions' exhibition and book launch. Pieta O'Shaughnessy on Curtin Radio (Perth), Tony Wilson for Triple R (Melb), Felicity Biggins on Radio 2NUR in Newcastle, Video interview with Frankie Fathers, Reuters TV (International), ABC National, AM Program, Channel 31 News. JOY FM, The Today show with Steve Liedman, Mar 05, Radio National-Life Matters-Art and Psychosis, RRR-Schizophrenia, Local Radio, and ABC Regional, Dubbo, Two Panel interviews with students, McGill University, Montreal.

#### **PRINT MEDIA REVIEWS/ARTICLES INCLUDE:**

'Rider of the storm', The Age, Michael Winkler, 'My Descent Into Madness'-Herald Sun, MCV-Reviewer, The Sydney Morning Herald - Reviewer Anne Deveson, [www.eclinicalpsychiatrynews.com](http://www.eclinicalpsychiatrynews.com) about psychosis and art, Possible presentation on SBS's 'Masterpiece' program about art and mental illness, Sydney Morning Herald, Mental Health hits the Political Frontline.'

#### PRESENTATIONS INCLUDE:

Recovered, Not Cured Book Launch-Artholes Gallery, Fitzroy, art exhibition, Mental Health Research Institute-To researchers and biochemists, Forensicare, Fairfield-To inpatients and social workers/psychologists, Early Prevention Psychosis (EPPIC)-To consumer groups, Presentation for Australian Centre for Youth Literature (ACYL) -To librarians and school teachers, Presentation for Australian Centre for Youth Literature (ACYL)-To 500 high school students, Baw Baw youth Network-To social workers and youth planners, Richmond Fellowship-Warnambool.-To consumers and their families, More talks to consumers at EPPIC, Royal Melbourne Hospital-with MHRI-'Psychosis and Cannabis' forum, St Andrew's Market-Mental Health Week, Forensicare, Thomas Embling Hospital, Mental Health Week, Presentation on autobiographical writing for high school students at The State Library, Australian Centre for Youth Literature (AYCL) (All in 2003,04), Carer Consultant Group, North West Mental Health, Parliament House, Canberra, for 'SANE's Guide To Electoral Offices', Personal clients, McGill University-Montreal, Paragraphe Bookstore-Montreal, Douglas Hospital-Montreal, Article for [www.eclinicalpsychiatrynews.com](http://www.eclinicalpsychiatrynews.com) about psychosis and art, Review in [www.world-schizophrenia.org](http://www.world-schizophrenia.org) hard copy Mail-out, USA and Canada, Guest speaker for the exhibition: [www.artagainststigma.org](http://www.artagainststigma.org) (Sydney, May 05)

Dr McLean lived off one unit of TPD cover from 2008. But Health Supers own product disclosure statement from 2007 cites that two units of cover are standard.



9 February 2007

Mr Richard McLean  
33 Rimbank Drive  
KEYSBOROUGH VIC 3173

Dear Mr McLean,

RE: **PERMANENT DISABILITY BENEFITS - SUPERANNUATION**  
Member Number: 9783679

Thank you for your telephone call on 8<sup>th</sup> February 2007 requesting documents to proceed with a disability claim.

Please note that you may be eligible for an insured benefit if your medical condition occurred prior to 14<sup>th</sup> May 2006.

Our records show that you terminated employment with The Royal Melbourne Hospital on 14<sup>th</sup> May 2006 and the total and permanent disablement cover ceased on this day. We also note that Health Super forwarded a cheque for \$1,779.53 to you on 3<sup>rd</sup> August 2006, which represented your superannuation entitlements.

Should your claim be approved by the insurer, AIG Life and Health Super the estimated benefit payable at this date you last actively work (1<sup>st</sup> October 2005) is \$83,100.00.

Our insurer, AIG Life, assesses all disability claims using the following definitions:

| Total and Permanent Disablement | Total and Permanent Disablement means that you:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|---------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                 | <p>a) as a result of injury, sickness or disease:</p> <ul style="list-style-type: none"> <li>i) have not performed any work for an uninterrupted period of at least 6 consecutive months solely due to the above injury, sickness or disease; and</li> <li>ii) are attending and under the regular care and following the advice of a registered medical practitioner and have undergone all reasonable and usual treatment including rehabilitation for the injury, sickness or disease; and</li> <li>iii) after consideration of all the medical evidence and such other evidence as AIG Life may require, have become incapacitated to such an extent as to render you unlikely ever to be able to engage in your own occupation and any occupation for which you are reasonably suited by education, linguistic training and experience.</li> </ul> <p>OR</p> <p>b) have suffered the total and irreversible loss of use of:</p> <ul style="list-style-type: none"> <li>i) both hands; or</li> <li>ii) both feet; or</li> <li>iii) one hand and one foot; or</li> <li>iv) the sight of both eyes; or</li> <li>v) one hand and the sight of one eye; or</li> <li>vi) one foot and the sight of one eye.</li> </ul> |
|                                 | Only one benefit payable and the amount payable upon permanent disablement must not exceed the death benefit.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

Dr Mclean's then rejected superannuation TPD and income assist cover from Australian Super was heard at AHRC - but they free kicked it to the opposition in a way which was totally not impartial.

1300 667 587  
GPO Box 990  
Melbourne VIC 3001 [australiansuper.com](mailto:australiansuper.com)

**AustralianSuper**



27 May 2020

Mr Richard Mclean  
2 McCubbin St  
FOOTSCRAY VIC 3011

Dear Mr Mclean

#### Your application for insurance cover

Member number: 1073219818

Your application for insurance cover has been assessed by our insurer.

After careful consideration of the information provided, your application has not been approved due to your mental health history noted in medical report received from Dr Robert McKinnon.

Please be advised you currently hold no cover with AustralianSuper.

If you'd like more information about why your application has been declined, please call our insurer, TAL Group Underwriting, on 1800 666 136 or email [ausuper@tal.com.au](mailto:ausuper@tal.com.au)

For more information about your insurance cover, including the terms and conditions that apply, please refer to our Insurance in your super guide. You can download the guide at [www.australiansuper.com/InsuranceGuide](http://www.australiansuper.com/InsuranceGuide) or call us to have a copy posted to you.

#### We're here to help

If you need help or have any questions, please call us on 1300 667 587 from 8.30am to 5pm AEST/AEDT weekdays or email [insurance@australiansuper.com](mailto:insurance@australiansuper.com)

Sincerely

AustralianSuper

Ref: LTD140 10217 -redink

Dr Mclean continues to have difficulty acquiring his FOI's from many places which is for the sole purpose of covering up his victimisation and protecting people with money power and privilege.



Mercy Public Hospitals Inc  
183 St. Mary Road  
Heidelberg VIC 3084  
Phone: +61 3 8458 4444  
Fax: +61 3 8458 4777  
mercyhealth.com.au

7<sup>th</sup> April 2021

Our ref: 626

Richard McLean  
2 McCubbin Street  
Footscray 3011

#### Freedom of Information Request

I refer to your request dated 10<sup>th</sup> March 2021 for a copy of your Mercy Mental Health Medical records requested under the Freedom of Information Act 1982.

#### Decision

A decision has been made by Clinical services Director Dean Stevenson to grant access in part of the mental health record with exempt matter deleted in accordance with section 25 of the FOI Act.

In this case, it has been decided that part of the mental health record is exempt under section 33(1) & section 35 of the FOI Act for reasons relating to personal privacy and material communicated in confidence.

#### Your review rights

You may apply to the Office of the Victorian Information Commissioner for review of this decision. Your application must be made within 28 days from the day on which this notice is given.

You may contact the Office of the Victorian Information Commissioner as follows:

**Office of the Victorian Information Commissioner**  
PO Box 24274  
Melbourne VIC 3001  
Telephone: 1300 842 364  
Email: [enquiries@foicommisioner.vic.gov.au](mailto:enquiries@foicommisioner.vic.gov.au)

Alternatively, you may apply to the Health Complaints Commissioner for conciliation. Your application must be made within 28 days from the day on which this notice is given.

*Compassion Hospitality Respect Innovation Stewardship Teamwork*

Dr Mcleans entire home was destroyed by being taken to the tip whilst he was incarcerated. That was overseen by the Hospital and the Police.

He was additionally violently attacked in Footscray and despite video evidence that the Police FOI refused to give -the affray was pinned him by a VOCAT tribunal.

Dr Mclean was also literally run out of town by the police whilst suffering incredible financial abuse and family violence because they were threatening him with themtntal health act and incarceration.

Lastly Dr Mclean was actually violently attacked inside Weribee mercy hospital by and underworld Government thug. There was no recourse and the attack was blamed on McLean who acted in self defence.



In line with the Government oppression and redaction of his finances, his PLR and ELR payments all but dried up on 2017 -about the time he was, Dr Mclean believes - framed by Russell ball.

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## Payments

Create payments for: 2020/21

### PJR Payments

| Payment          | Contract Number (Element) | Contract Pay Amount | Payment Pay Rate |
|------------------|---------------------------|---------------------|------------------|
| PJR Payment 1000 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1001 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1002 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1003 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1004 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1005 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1006 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1007 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1008 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1009 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1010 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1011 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1012 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1013 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1014 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1015 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1016 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1017 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1018 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1019 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1020 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1021 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1022 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1023 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1024 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1025 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1026 | 200000                    | 10.00               | 10.00/2000       |
| PJR Payment 1027 | 200000                    | 10.00               | 10.00/2000       |

There was another workcover case from 2006 - it was never paid.

# **CERTIFICATE OF SERVICE**

This is to certify that **MCLEAN, RICHARD WILLIAM** has been employed by Melbourne Health from **05/10/2006** to **07/09/2007**.

|                   |                               |                |                                  |
|-------------------|-------------------------------|----------------|----------------------------------|
| Employee Number   | 00034898                      | Date Commenced | 05/10/2004 (in Public Hospitals) |
| Employee Status   | PT Part Time                  | Weekly Hours   | 0.50                             |
| Award             | 10 Admin Officers             | Classification | HS1 GRADE 1                      |
| SGC Super Fund    | First State-Health SGC Scheme |                |                                  |
| Other Super fund  | NMW Generic Fund              |                |                                  |
| Membership Number | WORKCOVER                     |                |                                  |

## **Annual Leave**

|                               |      |                               |      |
|-------------------------------|------|-------------------------------|------|
| Hours credit at termination   | 0.00 | Anniversary Date              |      |
| Hours paid out at termination | 0.00 | Hours not paid at termination | 0.00 |

## **Personal Leave**

|                               |        |                                             |  |
|-------------------------------|--------|---------------------------------------------|--|
| Hours credit at termination   | 0.00   | Anniversary Date                            |  |
| Hours worked in current year  | 120.00 |                                             |  |
| Without a Medical Certificate | 7.00   | (occasions during current anniversary year) |  |
| With a Statutory Declaration  | 0.00   | (occasions during current anniversary year) |  |
| Carer's Leave                 | 0.00   | (occasions during current anniversary year) |  |

## **Long Service Leave**

|                                       |      |                                       |      |
|---------------------------------------|------|---------------------------------------|------|
| Recognition Date                      |      | Anniversary Date                      |      |
| Calendar days granted during service  | 0.00 | Calendar days at termination          | 0.00 |
| Calendar days paid out at termination | 0.00 | Calendar days not paid at termination | 0.00 |

## **Unpaid Leave**

Note: Leave Without Pay (LWOP) tracks annual leave and cost.

| Start Date | End Date | Calendar Days | Start Date | End Date | Calendar Days | Start Date | End Date | Calendar Days |
|------------|----------|---------------|------------|----------|---------------|------------|----------|---------------|
| 13.11.06   | 26.11.06 | 14            | 11.12.06   | 24.12.06 | 14            | 08.01.07   | 21.01.07 | 14            |
| 05.02.07   | 18.02.07 | 14            | 05.03.07   | 24.06.07 | 112           | 09.07.07   | 22.07.07 | 14            |
| 05.08.07   | 02.09.07 | 28            |            |          |               |            |          |               |

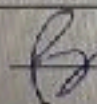
## **Status History**

05/10/2006-07/09/2007 Part Time - 0.50hrs

## **Change of Shift Allowance**

Change of Shift Allowance is 0 shifts per fortnight.

Signed

 Payroll Officer

Title

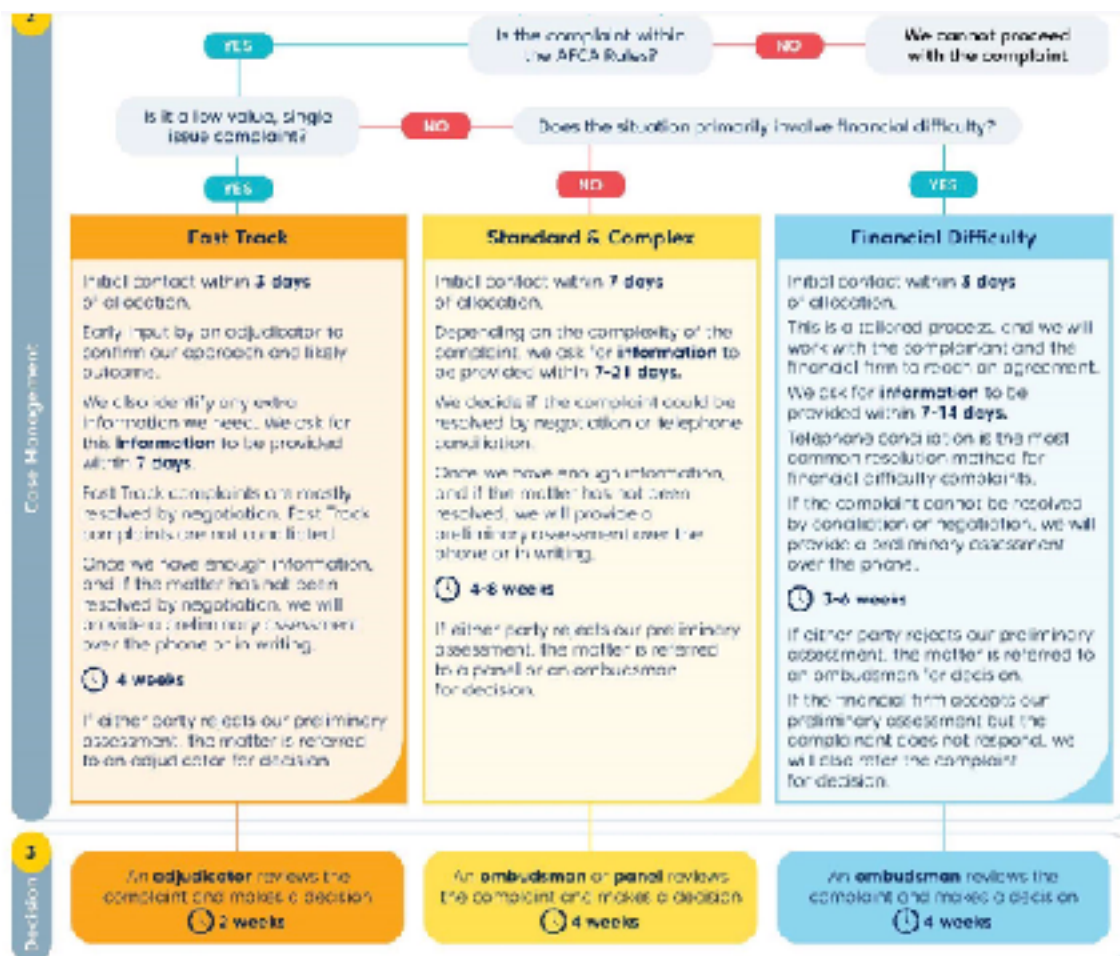
12319

Date of issue

**NO ALTERATIONS OR ERASURES**

Original CERTIFICATE OF SERVICE to be kept by EMPLOYEE ONLY

AFCA by their own policy had only three weeks to come to a determination for a financially marginalised person. Dr Mclean's took over a year and a half and then he was banned from all communication with AFCA.



Advised timeframes are targets. Case complexity and AFCA complaint volumes may affect the time taken to handle individual complaints.

<sup>1</sup> Most complaints will progress through the automatic registration and referral process.

<sup>2</sup> Some complaints may not be appropriate to automatically refer back to the financial firm because of the subject matter, urgency or the accessibility needs of the complainant.

Dr Mclean has always been sorry for any harm that has come to Dr Whittaker, but at the time, he was not registered for GST and he was not searchable on AHPRA's online database.

★ Rate This Doctor

### Ratings for Dr. John Whitaker

4 | 
 4 | 
 5 | 
 5 
 ★★★★★

Professional, Friendly, knowledgeable Dr who was a great asset to this clinic. Hope all is well. Kind regards, C.

Was this rating useful?

Flag | Submitted September 25, 2019

---

5 | 
 5 | 
 5 | 
 5 
 ★★★★★

Miss Dr John Whitaker for his professionalism. I hope you are well. TC

Was this rating useful?

Flag | Submitted September 25, 2019

---

5 | 
 5 | 
 5 | 
 5 
 ★★★★★

I love Dr. John Whitaker, one of the best & friendliest family doctors who really cared about his patients. Normally you would only find these types of doctors in country towns. So sad to lose him from Foxs Bay all of a sudden. Unfortunately, for some unknown reason, Millennium Medical Centre has become a revolving door of doctors over the last few years. I hope he makes a comeback and sets up his own clinic there in the not too distant future.

Was this rating useful?

Flag | Submitted August 26, 2019

---

5 | 
 5 | 
 5 | 
 5 
 ★★★★★

A wonderful, caring and knowledgeable Dr. Dr Whitaker. Thus he helped my son and I through some very challenging times. Good bloke, forever thank U. You will be missed. H & J.

Was this rating useful?

Flag | Submitted September 25, 2019



You may also like

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 Family Doctor / G.P.  
 ★★★★★ 2 reviews  
 #1 of 5165

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Dr. Katherine Vardapetian  
 ★★★★★ 22 reviews  
 #3 of 5165

Dr. Mervat Malek  
 ★★★★★ 15 reviews  
 #4 of 5165

Dr. Jagdeep Singh Dhillon  
 ★★★★★ 11 reviews  
 #5 of 5165

Dr Whitakers ABN was cancelled.

### John Campbell Whitaker ABN Report

John Campbell Whitaker (ABN 66 823 913 625) an Individual/Sole Trader with an address in Victoria has had a cancelled ABN from Tuesday, 25th September 2012 and is not registered for GST.

|               |                                             |
|---------------|---------------------------------------------|
| Name:         | John Campbell Whitaker                      |
| ABN:          | 66 823 913 625                              |
| Status:       | <b>ABN Cancelled</b> from 25 September 2012 |
| Type:         | Individual/Sole Trader                      |
| GST:          | <b>Not Registered for GST</b>               |
| Location:     | Melbourne, Bayside, VIC, 3005               |
| Trading Name: | DR J WHITAKER GENERAL PRACTITIONER          |
| ABN Updated:  | 9 December 2012                             |

NICOLE BELLETTE
BRADLEY HALL

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This information is provided by the Australian Taxation Office (ATO) and is not intended to be used as a substitute for professional advice. The information is provided for general information only and should not be relied upon for any specific purpose. The information is provided for general information only and should not be relied upon for any specific purpose. The information is provided for general information only and should not be relied upon for any specific purpose.

Dr Mclean has a government login for his work contracted to the NDIS at DSS. This alone should have paved the way for his work cover payments to be paid. Incredibly it has been over two and a half years and Dr McLean has never received a cent.



## View employee details

### Employee's details

First name : Richard

Last name : McLean

Email address : rich@richmclean.com.au

Work phone : 04183

### Provider's details

Provider legal name : MCLEAN, RICHARD WILLIAM

Provider trading na

Rich McLean, Arts Life  
Advocate

Address : 2 MCCUBBIN STREET FOOTSCRAY VICTORIA 3011

### Access status

Access Status : Active

Stable Id : NM622036

## 3. Required user role(s) \*

Choose at least one user role from the options below.

☐ **Approved Quality Auditor**

An employee of an Audit organisation, this person has the same responsibility of an 'Auditor' role and more. They are responsible for witnessing and submitting an assessment on a registration application, and providing an audit recommendation.

☐ **Auditor**

Michaelia Cash was alerted to the corruption at AFCA and AHRC and then as Dr Mclean predicted - the AAT work Cover case. Michaelia cash refused to intervene

as the attorney general and sent him to the SANE helpline. Dr Mcleans autobiography was SANE Australia's 'Book of the Year'

6 January 2022

MC21-0480

Dr Rich McLean  
2 McCubbin St  
FOOTSCRAY VIC 3011  
[drichmcleanwhistleblower@gmail.com](mailto:drichmcleanwhistleblower@gmail.com)

Dear Dr McLean

Thank you for your correspondence of 8 December 2021 to the Attorney-General and Minister for Industrial Relations, Senator the Hon Michaelia Cash regarding your experience with Comcare. The Attorney-General has requested that the Attorney-General's Department respond to you on her behalf.

I am sorry to hear of the difficulties you are currently experiencing.

I note that you have raised a number of legal matters in your correspondence. It is not appropriate for the Attorney-General as the First Law Officer, or the Attorney-General's Department, to provide legal advice to members of the public or intervene in private legal proceedings.

I can however provide you with the following information regarding whistleblower protection in Australia. Current or former public officials who suspect wrongdoing within the Commonwealth public sector can make a public interest disclosure under the *Public Interest Disclosure Act 2013*. The Act requires Commonwealth agencies to investigate suspected wrongdoing and take appropriate action. The Act provides public officials who make a disclosure under the Public Interest Disclosure Act with protection from reprisal action. Further information about the Public Interest Disclosure Act is available on the Commonwealth Ombudsman website: [Public Interest Disclosure - Commonwealth Ombudsman](#).

I understand from your correspondence that this may be a difficult time for you. You may wish to contact Lifeline, who provide crisis support by phone. They can be contacted 24 hours a day, seven days a week at 13 11 14. You may also wish to contact SANE, who support people affected by complex mental health issues. You can contact them by email at [helpline@sane.org](mailto:helpline@sane.org) or by phone from 10am-10pm, Monday-Friday: at 1800 187 263.

Thank you again for writing to us on this matter.

Yours sincerely

Security, Emergency and Administrative Law Branch  
Attorney-General's Department

The AHRC unceremoniously reject Dr Mclean's financial issue and human rights abuse and in a totally non impartial way kick it to Australian Super.

Dr Mclean knows the Government is behind it because he approached TAL after AHRC were out of the picture and received a \$50000 settlement.

**AUSTRALIAN HUMAN RIGHTS COMMISSION**

**FILE NO:** 2020-09751

**Between**

Richard McLean  
**Complainant**

**AND**

AustrallianSuper Pty Ltd  
**First Respondent**

TAL Life Limited  
**Second Respondent**

**NOTICE OF TERMINATION**

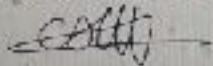
**Issued under section 46PH(2) of the *Australian Human Rights Commission Act 1986* (Cth) (AHRCA).**

This complaint alleging unlawful discrimination under the *Disability Discrimination Act 1992* (Cth), has been terminated under section 46PH(1B)(b) of the AHRCA on the ground that I am satisfied that there is no reasonable prospect of the matter being settled by conciliation.

Section 46PO(1) of the AHRCA provides that if a complaint has been terminated under section 46PH(1B)(b) of the AHRCA, an affected person may make an application to the Federal Circuit Court of Australia (FCCA) or Federal Court of Australia (FCA) alleging unlawful discrimination by one or more of the respondents to the terminated complaint. The FCCA and FCA can award costs against either party in proceedings under section 46PO of the AHRCA.

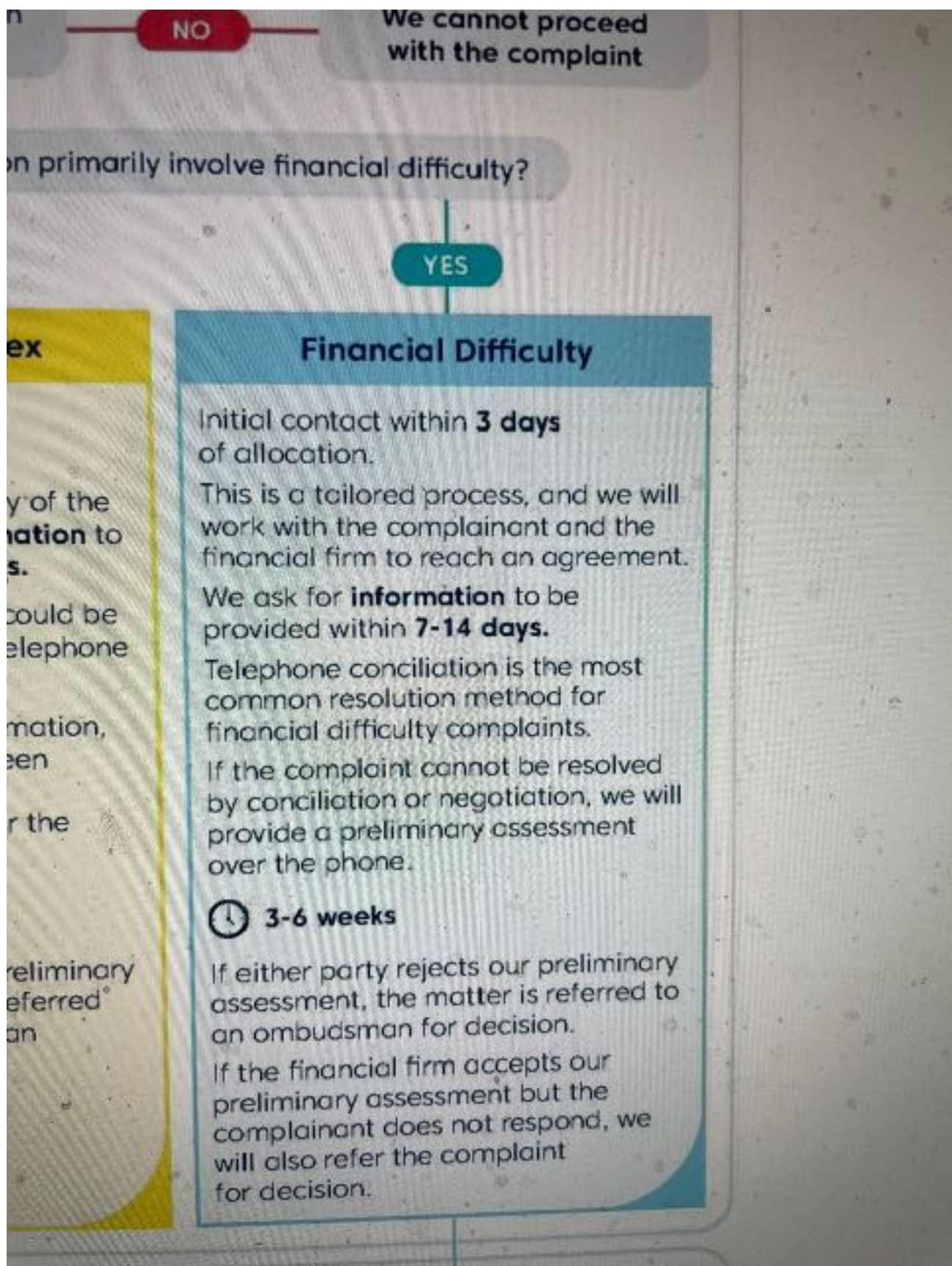
Reasons for this decision are provided in Attachment A.  
A copy of the complaint is provided at Attachment B.  
A copy of the amendment to the complaint is at Attachment C.

DATED 31 May 2021



Caroline Tjoa  
**Delegate of the President**

AFCA: 6 weeks for determinations for financially marginalised people.,



Mark Dreyfus refuse to acknowledge Dr Mclean. Here they are in 2015 at the marriage Equality rally.yes, Dr Mclean is a real person who is deserving of not

being treated differently than other free citizens in Australia that should have access to politicians.



Dr Mclean has been damaged by methamphetamine use - this is used to replicate the effect that his dexamphetamine had that Dr Horgan prescribed him to great success.

He did a Masters Degree, a PhD, worked, illustrated a children's book and designed an art book and fund raised for the Royal Children's Hospital, and then ran his own business for two years as an allied health professional looking after marginalised people in the local community before he was scapegoated and incarcerated.

*Clinical Assoc. Prof. David Morgan, Psychiatrist*

MB, BS, BAC, (BLS), MPH, DPM, MSc, FRACPSY, FRACGP, FRACPE, FRACF, FRACF, FRACF, FRACF

Founding Director of Australian Suicide Prevention Foundation, A Registered Charity www.ASPT.org.au

PHONE: 0853 6211

www.depression.com.au

www.youthsuicide.com.au

SLATE 509

FAX: 0853 6744

www.dr.davidmorgan.com

www.australsuicide.com.au

89 HIGHTS HILL

EMAIL: ddmorgan@gmail.com

www.australsuicide.com.au

KEW, VIC 3101

28<sup>th</sup> November 2014

Dr. John Krumaker  
Millennium Medical Centre  
Cor. Dudley & Alfred Streets  
FOOTSCRAY, VIC 3201

Dear John,

**Re: Richard McLEAN**  
**Diagnosis:**  
1. Bipolar illness  
2. Previous diagnosis of schizophrenia  
3. Life-changing benefits from DEKAMPHETAMINE

Thank you for referring Richard. I was very concerned to read his story via email of dramatic benefits from DEKAMPHETAMINE allowing him to discontinue fully (temporarily with this PhD) prescribed he actually had some low dose Desamphetamines to take on a daily basis. In 1992, he flourished, easily, had anxiety and depression and even had suicidal ideas when he did not have Desamphetamines. I think and Richard has seen a total of about 15 psychiatrists over the past 20 years approximately and that includes psychiatrists have been reluctant to prescribe Desamphetamines for him. In contrast, I put him on one of the 'wondering' like so that it could intervene rapidly in this chronic.

Richard could not let people know at that time in a society's dogmatic that he was gay, so that he was miserable with pressures only escalating depression (about his sexual and identity). In the context of this severe depression he developed psychotic symptoms. He was treated as having schizophrenia at the time.

However, at age 28 he had a clear hypomanic episode which would confirm that he has bipolar illness. He describes a number of weeks of feeling elated, having increased energy, increased spending, increased talking, increased excitement, increased libido, general disinhibition and in particular 'grandiose plans'. (Note: commented that he was high, and when the episode passed he felt embarrassed by some of his actions and words during that time. He does not recall having any other hypomanic episodes. This one episode of hypomania confirms the diagnosis of bipolar illness.

Whether or not his psychotic symptoms occurred at a level of depression severe enough to explain the psychosis is difficult to say over 20 years later. However, using Ockham's Razor, I think it is a far more simple working diagnosis that he has had Bipolar illness with psychotic symptoms in the past. He is now well maintained on two antipsychotic drugs.

On a purely practical note, let us not dispute the diagnosis of schizophrenia immediately, so that we do not have awkward issues about the PBS!

As you know, in desperation, Richard did try Desamphetamines with great benefit. He has been taking this medication in a dose of 10mg 3-4 times a day since August, and over the past 12 months. He tells me he is getting on, resists now in his university, a research achievement at PhD level.

I certainly see Richard as having residual depression, with symptom breakthrough of anxiety and depression, relieved by Desamphetamines.

ALSO AT THE DEPARTMENT OF PSYCHIATRY, UNIVERSITY OF MELBOURNE  
The opinions in this document are not the opinions of this institution

Dr Mclean and Mr Iasonidis in 2011. What was Iasonidis doing for the world whilst Dr Mclean was fundraising for sick children? He was unknown to Dr Mclean -

claiming the carers pension and exploiting Dr Mclean for apparently being ill to feather his own financial nest.

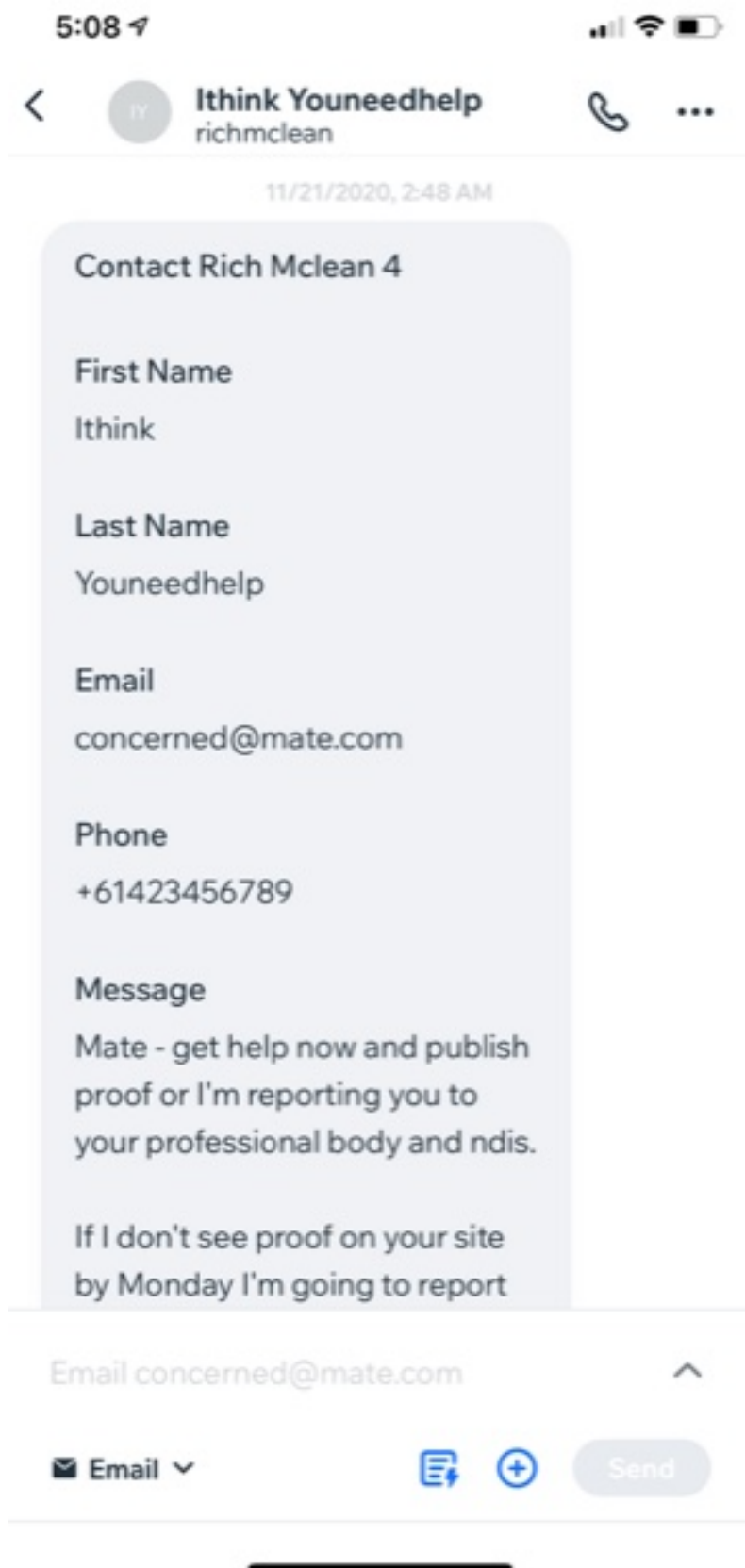


I wish to state that it is entirely unfair that Dr Mclean has acted with courage in which to advance the public narrative of psychosis yet he was vilified for it. An example of the way in which he has been vilified with utter impunity is when The Herald Sun took his brave words and ran with the headline 'MY DESCENT INTO MADNESS - How schizophrenia stole Richard Mclean's mind', which ruined his reputation publicly out of context and for which he was fired from his role as a news graphics artist and illustrator at The Age newspaper - a job which he loved.



Another issue has influenced Dr Mclean's literal destruction - that is that as a powerful force - he has attracted powerful intellectual figures. This happened when he was engaged to be married to Steve Stefan Iasonidis from 2010-2015. Steve is a formidable sociopath who exploited Dr Mclean and left him homeless. Due to laws around separation of assets for defacto couples, Mr Iasonidis owes Dr Mclean a fair and equitable settlement because they lived as a married couple for five years.

Dr Mclean attempted to engage a lawyer in order to settle, but Dr McLean was unable to get a lawyer. Dr Mclean demanded settlement from Mr Iasonidis' lawyer and the reprisal was swift: within two weeks of his demand letter Dr Mclean found himself incarcerated inside Weribee mercy hospital as a method of punishment for attempting to gain access to Mr Iasonidis finances. He was maliciously exploited for his public identification with 'mental illness.' Dr Mclean also threatened to blow the whistle on Mr Iasonidis 1.2 million investment in an offshore haven after the sale of his Abbotsford house. He was also going to blow the whistle on an admission from Mr Iasonidis that he was a prior cocaine smuggler and was present at murders - one notable one at the Collingwood flats where he admitted a Vietnamese man was shot and killed and three of them escaped in a car. To this, Mr Iasonidis responded on Dr Mcleans website in the following manner which is not only evidence of the crime in itself but demonstrates Mr Iasonidis malice towards Dr Mclean and the conscious harm that he enacts upon him:



At this time, Dr mclean had been the subject of family violence for years from Mr Iasonidis and Government oppression in that the Government refused to intervene in the settlement for Dr Mclean. Mr Iasonidis worked first for Apple then for ASIO, and despite ASIO's commitment to family values and additionally that staff were

public officials required to act ethically in all levels of Government, ASIO refused to intervene and AGIS the statutory authority that investigate ASIO also refused to investigate how Dr Mclean was exploited in their relationship and then continued to be financially controlled by Iasonidis for years.

Dr Mclean's courageous attempts to stick up for himself apparently landed Mr Iasonidis in hot water to the tune of a million dollars in embezzlement for which Mr Iasonidis has used a carrier service in order to threaten to harm Dr McLean and his beloved dog, Crystal:

10:31

← Scruff



★ Man bi  
15km away

...

Stay safe

10:29 pm

I'm not surprised at anything at all.  
Lol what's real for me is sentence.

Why do you think he told you that  
and how did he connect with you and  
what am I who am I and where am I  
lol

10:30 pm

Embezzlement

Million\$\$\$\$

Wants the husky

Dead

10:31 pm

So why are you trying to pursue de  
me with salacious gossip loo

Read 10:31 pm

Dr Mclean was also he believes framed by Russell Ball - a lawyer who informs Government policy and advises the Ombudsman (where Mclean is now a failed whistleblower) over a 2017 malpractice case in which evidence was silenced by: HCC, MHCC, The Police, IBAC, The Victorian inspectorate, AHPRA, NHPOPC and The Commonwealth ombudsman. In addition then health minister Greg Hunt towed the party line in refusing to acknowledge the evidence - that was permissible evidence before a court. The case never happened.

Hello Matthew,

I have listened to the recording of the consultation. There are many errors and omissions, identified by my "scribbles" on the attached copy of Mr McLean's transcript. In my submission, The inaccuracies are substantial and the Board should not rely on the transcript, or be ever circumspect if it does so.

In the "key facts" at the start of the document, Mr McLean says that "His [Dr Whitaker] NDIS plan was not necessary". This gives the erroneous impression that Dr Whitaker imposed the document on Mr McLean. He presented the NDIS plan for completion by Dr Whitaker, having made a one hour appointment for that purpose.

Otherwise, I refer to the substantive response on behalf of Dr Whitaker and my submissions regarding the consultation and the recording of it by Mr McLean.

Regards

**Russell Ball**

*Director*

T[S47F -

F +61 3 9421 4255

HS47F - Personal privacy

[S47F - Personal privacy]

Level 36, 360 Elizabeth Street  
Melbourne VIC 3000

[www.ballandpartner.com.au](http://www.ballandpartner.com.au)

At the same time Dr Mclean wanted the sexualisation of him as a child acknowledged by authorities and compensated however a geelong VOCAT magistrate threw his case out citing him as 'doomed' to fail and at the same time rejecting any compensation. Dr mclean now believes that it was because dr Mclean was framed as an extortionist by Russell ball to the highest offices in the country only seeking money for the Whittaker malpractice case. Further - he was profiled in Government circles so that he would be redacted any type of prosperity in order to destroy him as a vengeful reprisal for being identified as the bad guy for having recorded Dr Whittaker and also for attempting to gain access to Mr Iasonidis millions in superannuation.

This was further reflected systemically and politically when his financial determinations at AFCA - which were by their own policy supposed to take only six weeks for a financially marginalised person took over a year and a half. Dr Mclean's reality is already at a high level of uncertainty - this is why he records things. It is called 'reality checking' and is a coping mechanism for living with hallucinations and ideas of reference. Tim Gos - head of service delivery at AFCA called Dr Mclean and Dr Mclean recorded the conceitedly audacious way that Tim Gos acted with impunity in order to elongate Dr Mclean's financial destruction. Dr Mclean stated that this was a conspiracy to pervert the course of justice and that he was outraged by the victimisation from Government agencies and his continued financial destruction which was only an elongation of the coercive financial control that Mr Iasonidis used to deny any settlement and enact family violence. Family violence is not ok and every day that Dr Mclean has been without food or money or with no home and the Government protect Mr Iasonidis is another day that family violence and Government tyranny wins.

DrMcLean attempted to be compensated for the immeasurable detriment at the department of finance CDDC scheme but was rejected.



**Australian Government**  
**Department of Finance**

Our Ref: DPS21/0034

Dr Rich McLean  
2 McCubbin St  
FOOTSCRAY VIC 3011

By email only: [richardmrawstuf@gmail.com](mailto:richardmrawstuf@gmail.com)

Dear Dr McLean

**Act of Grace Request**

I refer to your application for an act of grace payment, received by the Department of Finance (Finance) on 19 August 2022. The request relates to allegations about the conduct of various private individuals and organisations, as well as complaints regarding your interactions with a number of agencies, including Services Australia, Centrelink and the Australian Securities and Investments Commission (ASIC).

The act of grace mechanism is generally a remedy of last resort and is not used when there is another viable remedy available to provide redress. Furthermore, the act of grace mechanism is generally only available to provide a remedy for the actions of a non-corporate Commonwealth entity (NCE). A list of NCEs is available on the [Finance website](#). If the entity you have been dealing with is not an NCE, it is unlikely that Finance can consider your requests that relate to those entities.

I have reviewed the large volume of material that you have provided in support of your act of grace application.

**Non-Commonwealth agencies**

I note that the majority of your matters relate to private individuals and organisations, state government matters, and Corporate Commonwealth entities – all of which fall outside of the scope of the discretionary payment mechanisms that are available under the *Public Governance, Performance and Accountability Act 2013* (PGPA Act). If a request relates to the actions of a state or territory government department, or a private organisation (i.e. does not relate to the acts or policies of a non-corporate Commonwealth entity), an act of grace payment is unlikely to be appropriate and you should contact the relevant organisation directly to discuss the redress or review options that may be available to you to resolve your circumstances.

**Commonwealth agencies**

Regarding your claims that you submitted a report of misconduct to ASIC in relation to your interactions with the Hospital Contribution Fund (HCF) and your customer service concerns regarding AFCA, ASIC has advised Finance that it assessed the report of misconduct (report) submitted by you on 5 July 2021 and decided not to take action on the report on the basis that there was insufficient evidence of misconduct by HCF and that you should continue with the available dispute resolution processes in relation to your dispute with HCF. Finance understands that ASIC corresponded with you on 22 July 2021 in response to the report and advised you of the following:

- ASIC does not offer external dispute resolution services like AFCA and its role does not extend to taking action against financial firms on behalf of individuals in relation to their private disputes.
- ASIC believes that such disputes are best resolved through internal dispute resolution and external dispute resolution processes and with the benefit of legal advice.
- Whilst ASIC has an oversight role of AFCA, AFCA remains independent and responsible for its own individual complaints handling.
- Any action taken by ASIC is aimed at a broader public benefit, rather than a solution for individual reporters of misconduct, and ASIC does not intervene in private disputes and is unable to provide legal advice.

On the basis of the above information from ASIC, I am satisfied that in relation to your concerns regarding conduct your interactions with ASIC were dealt with appropriately by ASIC, on the basis that they are not matters for which ASIC has legislative or administrative responsibility.

Regarding your request that Services Australia/ Centrelink (Centrelink) acknowledges your former partner's relationship to allow a formal separation of assets, and Centrelink's handling of your Disability Support Pension and JobSeeker payments, you have not provided any information regarding any specific applications or requests that you have made to Centrelink in relation to these matters. Therefore Finance encourages you to contact Centrelink directly to progress these specific issues, as it appears that you have not exhausted all avenues available to you in respect of these matters you have raised. Furthermore, if you consider that Centrelink has been defective in its administration of your applications for income support payments, you may apply directly to Centrelink for compensation under the *Scheme for Compensation for Detriment caused by Defective Administration* (CDDA Scheme).

Information on how to apply for compensation from Centrelink is available on Services Australia's website at this address:

<https://www.servicesaustralia.gov.au/claiming-compensation-from-us?context=26266>

This website address also contains information on how to request a Review of a Decision prior to submitting a claim for compensation.

Based on the information provided in your application and your emails, I consider that in relation to your complaints about the above Commonwealth agencies, you appear to have other viable remedies available to you, that you have not exercised. Consistent with the policy guidance, I do not consider that an act of grace payment is a remedy of last resort in your circumstances, and therefore do not consider that an act of grace payment would be appropriate. I have therefore closed your application for an act of grace payment. Finance will not enter into any further correspondence with you on these matters.

Dr McLeann, you have also previously been advised by Finance that the act of grace mechanism is not the appropriate avenue to receive urgent financial assistance. Therefore I would also encourage you to discuss your circumstances with Centrelink, to ensure you are receiving all the support available from the Commonwealth. Information on Australia Government payments and the application process can be found on the Centrelink website here:

[A guide to Australian Government payments - Services Australia](#)

[Get a Centrelink payment - Before we get started - Services Australia](#)

Yours sincerely



Date: 2022.11.28  
16:56:20 +1100

Danielle B  
Registrar – Position number 09001568  
Discretionary Payments Section  
Department of Finance

28 November 2022

Lastly, Dr Rich McLeans PID at the NDIS has not been acknowledged within the 14 day time frame.

Dr McLean is universally ignored and gaslighted - but this letter with the evidence and my signature on it will force authorities to act in the case of this - a conspiracy to pervert the course of justice and Dr McLeans vile victimisation and family violence that is elongated by the federal Government who protect Mr Iasonidis.

Today - Dr McLean has no home and no food.

Dr McLean informs me he 'spends every day trying not to die'

It is unconscionable that the status quo of his scapegoating continue beyond this email.

Dear NDIS,

My client Richard McLean sent a PID to the NDIS on 18th of April to report disclosable conduct.

A PID has only 14 days to respond to a public interest disclosure via the legislation.

14 days has lapsed on Tuesday 2nd of May.

Richard has harm occurring to him.

He can neither :

1. Go to police
2. Be a whistleblower (so far)
3. Get a lawyer.

The federal court has acknowledged harm is occurring to him.

His former partner Stefan Iasonidis (who worked for ASIO), threatens to kill Richard and his beloved dog Crystal.

That is after Richard's whistleblowing efforts apparently caused Mr Iasonidis to pay 1 million dollars in embezzlement for his corrupt financial affairs.

Richard lives in hiding knowing the Government protect Stefan Iasonidis in preference for vilifying Richard with mental illness and exploiting him.

Additionally, Richard is banned at AFCA, he has been rejected at the AHRC, and the attorney general Mark Dreyfus will not acknowledge his emails or phone calls.

In addition the office of prime minister and cabinet refuse his FOI by saying he does not exist.

He does - he worked for over thirty years as an independent advocate for people who suffer from mental illness and their carers.

He has spoken all over this country including inside Australian parliament.

Richard has lived with no home nor food nor equality before the law access to the law, and the charter of human rights fort a person with a disability says that this IS the law for people with a disability.

In addition, Richard suffers schizophrenia, from which he suffers delusions and persecutionary ideas.

It is abhorrent that as an already marginalised person that the Government including the NDIS keep towing the party line of his persecution and victimisation with impunity - and it is destroying him.

In fact, this years long oppression caused his suicide attempt inside Weribee mercy hospital in Feb 21 - for which there is now a cover up and for which he suffers a cognitive brain impairment.

Regards.

On 4 May 2023, at 10:27 pm, Rich McLean <richarddrawsstuff@gmail.com> wrote:  
<04.09.2021 EVIDENCE micron21.destroying.my.evi.jpeg>